

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2024CUPA020866: HIROSHI STEPHENS vs ANTHONY M VALENCIA, et al.

09/10/2026 in Department 43

**Motion to Compel ANSWERS TO DEPOSITION QUESTIONS TO PLAINTIFF AND
REQUEST FOR MONETARY SANCTIONS**

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Defendants and Cross-Complainants GMH, Inc. dba West Coast Air Conditioning and Anthony M. Valencia Motion to Compel Answers to Deposition Questions to Plaintiff and Request for Monetary Sanctions.

Tentative Ruling:

Defendants and Cross-Complainants GMH, Inc. dba West Coast Air Conditioning and Anthony M. Valencia Motion to Compel Answers to Deposition Questions to Plaintiff and Request for Monetary Sanctions is GRANTED in part and DENIED in part.

Plaintiff in the Opposition has agreed to respond to the questions regarding alcohol use and personal relationship. However, since the Court is unaware of whether the responses have been provided, Plaintiff is ordered to provide those responses. and the motion as to those questions is granted on that basis.

The motion with respect to questions regarding the mental health therapist is denied. This information is protected by Plaintiff's right of privacy and Defendants have not shown direct relevance to Plaintiff's general claims for pain and suffering.

The request for monetary sanctions by both parties is denied.

Moving party is ordered to serve notice of the Court's ruling.

DISCUSSION

"The protection of information from discovery on the ground that it is privileged or that it is a protected work product under Chapter 4 (commencing with Section 2018.010) is waived unless a specific objection to its disclosure is timely made during the deposition." (Code Civ. Proc., § 2025.460, subd. (a).)

"The deposition officer may not suspend the taking of testimony without the stipulation of all parties present unless any party attending the deposition, including the deponent, demands that the deposition officer suspend taking the testimony to enable that party or deponent to move for a protective order under Section 2025.420 on the ground that the examination is being conducted in bad faith or in a manner that unreasonably annoys, embarrasses, or oppresses that deponent or party." (Code Civ. Proc., § 2025.470.)

"If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production." (Code Civ. Proc., § 2025.480, subd. (a).)

"This motion shall be made no later than 60 days after the completion of the record of the deposition, and shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2025.480, subd. (b).)

A. Merits

Defendants' motion was directed at three topics: (1) Plaintiff's alcohol use, (2) personal relationship, and (3) mental health treatment.

The Opposition acknowledges that the deposition questions related to alcohol use and personal relationship is proper. Therefore, Plaintiff has agreed to respond to these questions and the motion with respect to these topics is moot.

The only remaining dispute is whether Plaintiff had seen a therapist as a result of the March 2023 incident. The Separate Statement describes the deposition question and response as follows:

Deposition Question:

"Q So, have you seen a, any therapist? It could be a therapist, a counselor, a psychiatrist, psychologist, as a result of the March 2023 incident?" (Depo. p. 215.)

Response / Instruction Not To Answer:

"MR. RICHARDS: I'm going to order him not to answer because we are not making a separate and distinct psych claim." Upon a repeated question, counsel further stated: "Again, I'm going to instruct him not to answer any questions about his mental health because we are not pursuing a separate and distinct psych claim in this case."

(Depo. pp. 215-216.)

The Opposition clarifies that the instruction not to answer is based on the privacy protection for mental health information.

“Even if information is otherwise discoverable, it may be protected by a constitutional ... privilege ... [including] ... the right to privacy’ [Citation].” (*County of Los Angeles v. Superior Court (Johnson & Johnson)* (2021) 65 Cal.App.5th 621, 639.)

The constitutional right of privacy applies to a party's medical records. (*John B. v. Superior Court (Bridget B.)* (2006) 38 Cal.4th 1177, 1198.)

Although a plaintiff suing for personal injuries waives the right, it does not make discoverable all of plaintiff's medical history; the right of privacy still protects physical and mental conditions unrelated to the claim or injury sued upon. (See *Britt v. Superior Court (San Diego Unified Port Dist.)* (1978) 20 Cal.3d 844, 864.)

In *Davis v. Superior Court (Williams)* (1992) 7 Cal.App.4th 1008, petitioner and her husband filed a complaint for damages for personal injuries suffered in an automobile accident. Petitioner claimed compensatory damages for wage loss, hospital and medical expenses, general damage and loss of earning capacity. Real party sent a subpoena duces tecum to the custodian of records for Cedar Women's Center, seeking petitioner's treatment records. Petitioner filed a motion to quash the subpoena and for a protective order to limit the discovery to directly relevant medical history of a 10-year period prior to the accident. The trial court denied the motion to quash the subpoena, limited discovery to the last 10 years and directed that the records be confidential and used for this case only.

“In determining whether one has waived the right of privacy by bringing suit, our Supreme Court has noted that although there may be an implicit partial waiver, the scope of such waiver must be narrowly, rather than expansively construed, so that plaintiffs will not be unduly deterred from instituting lawsuits by fear of exposure of private activities. [Citation]. An implicit waiver of a party's constitutional rights encompasses only discovery directly relevant to the plaintiff's claim and essential to the fair resolution of the lawsuit. [Citation]. There must be a compelling and opposing state interest justifying the discovery. [Citation]. Even when discovery of private

information is found directly relevant to the issues of ongoing litigation, it will not be automatically allowed; there must then be a careful balancing of the compelling public need for discovery against the fundamental right of privacy. [Citation]. The scope of any disclosure must be narrowly circumscribed, drawn with narrow specificity, and must proceed by the least intrusive manner.” (*Davis v. Superior Court (Williams)*, *supra*, 7 Cal.App.4th at p. 1014.)

“We recognize that an allegation of pain and suffering from a physical injury permits a party to recover for a range of emotional injuries. Pain and suffering have included physical pain, fright, nervousness, grief, anxiety, worry, mortification, shock, humiliation, indignity, embarrassment, apprehension, terror and ordeal. [Citation]. However, our Supreme Court has recognized that the extent to which a mental component may be in issue in a particular suit depends upon the facts of a particular case. [Citation].” (*Davis v. Superior Court (Williams)*, *supra*, 7 Cal.App.4th at pp. 1015-1016.)

“Although diligent search has revealed no California cases presenting the same facts and issue as presented here, it has been held elsewhere that the filing of a personal injury action seeking damages for pain and suffering does not, ipso facto, place mental condition in issue as part of the claim.” (*Davis v. Superior Court (Williams)*, *supra*, 7 Cal.App.4th at p. 1016.)

“Petitioner here has clearly limited her claim to pain and suffering associated with the injuries to her body. Nothing prevents real party from seeking records directly relevant to such claim by a narrowly drawn discovery request. If such a request were made, the trial court could then evaluate the respective interests of the parties and the necessity and appropriate extent of disclosure according to the standards set forth hereinabove.” (*Davis v. Superior Court (Williams)*, *supra*, 7 Cal.App.4th at p. 1018.)

The First Amended Complaint pleads claims for general negligence and MVA. The causes of action plead that Plaintiff suffered injuries and damages in an amount to be proved at trial. There is no specific claim for mental distress damages that would require disclosure of private mental health information and Plaintiff has confirmed that none is being (or will be) made. The motion and reply do not identify any direct relevance of the information sought. Therefore, the motion to compel an answer to this deposition question is denied, conditioned on Plaintiff’s waiver of mental health claims beyond “garden variety” emotional distress/pain and suffering damages.

The Court declines to award sanctions to either party.